



SPONSOR: Sen. Hocker & Rep. Collins

DELAWARE STATE SENATE
153rd GENERAL ASSEMBLY

SENATE BILL NO. 39

AN ACT TO AMEND THE CHARTER OF THE TOWN OF SELBYVILLE RELATING TO ELECTIONS.

BE IT ENACTED BY THE GENERAL ASSEMBLY OF THE STATE OF DELAWARE (Two-thirds of all members elected to each house thereof concurring therein):

Section 1. Amend Section 3 of the Charter of the Town of Selbyville by making deletions as shown by strike through and insertions as shown by underline and redesignating as follows:

Section 3. Structure of Government.

The government of the Town and the exercise of all powers conferred by this Charter, except as otherwise provided herein, shall be vested in a Mayor and Town Council.

3.1 Election Districts. The Town Council shall divide the Town into 4 districts. The initial districts must be established no later than January 1, 2026. Thereafter, the Town Council shall adjust the district boundaries to comply with the requirements under this section no later than the first day of January of the second year following the federal decennial census.

3.1.1 Each district must be formed of contiguous territory.

3.1.2 To the extent possible and practicable, each district must be nearly equal in population based on the most recent federal decennial census information.

3.1.3 Upon enactment, the new districts and boundaries supersede previous district boundaries for all purposes of the next Annual Municipal Election, including nominations. The new districts and boundaries supersede previous districts and boundaries for all other purposes on the date of the Annual Meeting when the members of the Town Council elected at the Annual Municipal Election take office.

3.1.4 The Town Council shall be composed of four (4) members. consists of 1 member from each of the 4 districts. Each Town Council member shall be nominated and elected by the registered voters from the district in which the member resides.

3.2 The Mayor and each member of the Town Council shall be nominated and elected from by the registered voters of the Town at large. large.

3.4 Qualifications. The qualifications for the Mayor and for each member of the Town Council at the time of the election shall be are as follows:

3.4.1 The Mayor and each member ~~shall~~ of the Town Council must be at least ~~twenty-one (21)~~ 21 years of age.

3.4.2 The Mayor and each member ~~shall~~ of the Town Council must be a citizen of the United States ~~and of the State of Delaware~~ and a bona fide resident of ~~The the~~ Town of ~~Selbyville. Selbyville~~ for at least 2 years. Each candidate for Town Council must also be a resident of the district from which the candidate seeks election.

Section 2. Amend Section 6 of the Charter of the Town of Selbyville by making deletions as shown by strike through and insertions as shown by underline as follows:

Section 6. Elections.

6.2 Manner of Holding Annual Municipal Election. The procedure for holding the Annual Municipal Election ~~shall be~~ is as follows:

6.2.1 The Annual Municipal Election shall be held at a time and place designated by the Mayor and Town Council within the corporate limits of the Town of Selbyville on the first Saturday in March of each ~~and every year, the first said Annual Municipal Election to be held pursuant to this Charter to be held on the first Saturday in March, A.D. 2001. Due~~ year. The Town Council shall provide notice of ~~said the Annual Municipal~~ election ~~shall be given~~ by posting ~~notices thereof in five (5)~~ notice of the election in 5 public places within the corporate limits of the Town of Selbyville not less than ~~ten (10)~~ 10 days before the day of ~~such the~~ Annual Municipal Election, and by publishing at least ~~one (1)~~ 1 notice in a newspaper of general circulation in the Town at least ~~ten (10)~~ 10 days before the day of ~~such the~~ Annual Municipal Election.

6.2.2 ~~At the Annual Municipal Election to be held on the first Saturday in March, A.D. 2001, the Mayor and two (2) members of the Town Council shall be elected. The Mayor and each of the Councilmen so elected shall serve for a period of two (2) years or until his successor has been duly elected and qualified. The elections for the Mayor and members of the Town Council from the first and third districts shall be held at the Annual Municipal Election in odd-numbered years.~~

6.2.3 ~~At the Annual Municipal Election to be held on the first Saturday in March, A.D. 2002, two (2) members of the Town Council shall be elected. Each of the Council members who are elected shall serve for a term of two (2) years, or until his/her successor has been duly elected and qualified. The elections for members of the Town Council from the second and fourth districts shall be held at the Annual Municipal Election in even-numbered years.~~

6.2.4 ~~Thereafter, at each Annual Municipal Election, there shall be elected two (2) Councilmen who shall serve for a term of two (2) years or until their successors have been duly elected and qualified, except at the Annual Municipal Election in the year in which the Mayor is to be elected, at which time there will be elected a Mayor and two~~

54 ~~(2) Town Councilmen.~~ The Mayor and members of the Town Council are elected for a term of 2 years, effective with
55 the Annual Meeting under Section 7.1 of this charter.

SYNOPSIS

This Act amends the Charter of the Town of Selbyville (Selbyville) by doing all of the following:

1. Divides Selbyville into 4 election districts. The 4 election districts must be nearly equal in population based on the most recent federal decennial census.
2. Changes the composition of the Town Council so that the 4 members are comprised of 1 member from each district. Each member must be nominated and elected by the registered voters of the district in which the member resides.
3. Requires that a candidate for Mayor or the Town Council be a resident of Selbyville for at least 2 years.
4. Makes corresponding revisions to the staggered terms served by members of the Town Council.

This Act also makes technical corrections to conform existing law to the standards of the Delaware Legislative Drafting Manual.

This Act requires a greater than majority vote for passage because § 1 of Article IX of the Delaware Constitution requires the affirmative vote of two-thirds of the members elected to each house of the General Assembly to amend a charter issued to a municipal corporation.

Author: Senator Hocker